

		California Rules of Court, rule 3.1324, subdivision (b), provides a motion to amend must be accompanied by a declaration setting forth the effect of the amendment, why it is necessary and proper, when facts giving rise to the amended allegations were discovered, and the reasons why the request for amendment was not made earlier. Stewart seeks an order granting leave to file a first amended cross-complaint to “clarify legal theories arising from the same operative facts.” (Mtn. at 4:25-26.) Specifically, Stewart seeks to “clarify[y] existing allegations regarding erosion, excavation, and destabilization of this hillside.” (Mtn. at 5:23-24.) Stewart contends there is no prejudice as the proposed amendment does not alter the nature of the action and the core evidence and witnesses remain the same. Plaintiff/cross-defendants contend Stewart does not comply with California Rules of Court, rule 3.1324, subdivision (b) and that the amendment materially expands the case making the failure to comply with rule 3.1324 consequential. Stewart’s declaration submitted in support of the motion does not comply with Rule 3.1324, subdivision (b). While Stewart states in the motion that the need for amendment “became apparent following further evaluation of the site conditions, including consultation and site review” (Mtn. at 7:4-9), its inclusion in the motion itself does not comply with Rule 3.1324. Nor does this provide the additional information required by Rule 3.1324, including why the request for amendment was not made earlier. While Stewart included a supplemental declaration in support of the reply, which Stewart contends complies with Rule 3.1324, doing so in the reply does not provide Plaintiff/cross-defendants the opportunity to respond to the new issues raised. (<i>American Drug Stores v. Stroh</i> (1992) 10 Cal.App.4th 1446, 1453 [“Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument.”])
3	L. v. Flores-Rivas 2022-01259553 Motion to Be Relieved as Counsel of Record OSC Re Dismissal on Settled Case	The motion of attorney Simah Aljabari from Ledezma Law, APLC to be relieved as counsel of record for defendant Felipe Rivas is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362.

		Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
4	Rivas v. Hurtado 2021-01225380 Be Relieved as Counsel of Record OSC Re Dismissal on Settled Case	The motion of attorney Simah Aljabari from Ledezma Law, APLC to be relieved as counsel of record for plaintiff Felipe Rivas is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
5	Diana Lynn Garbers, Trustee of Diana Lynn Garbers Trust of 1999 v. Fierro 2025-01552051 Motion for Preference CMC	Plaintiff Diana Lynn Garbers's as Trustee of the Diana Lynn Garbers Trust of 1999 Motion for Trial Preference is DENIED. "(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: [¶] (1) The party has a substantial interest in the action as a whole. [¶] (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (§ 36(a).) Plaintiff's declaration fails to show her health is such that preference is necessary. She states due to her age "I am concerned about my ability to fully participate in and endure a prolonged litigation process." (Gabers Decl., ¶ 4.) However, Plaintiff provides no medical diagnosis which supports her concern. Additionally, counsel's declaration is insufficient for the same reason as it fails to provide a medical basis for his concern for Plaintiff's ability to participate in trial. (See <i>Fox v. Superior Court</i> (2018) 21 Cal.App.5th 529, 534-535.) Thus, Plaintiff has failed to show there is a good medical reason for concern her ability to participate in trial will be adversely affected if preference is not granted. Accordingly, Plaintiff's Motion is denied.
6	Clark v. Clark 2025-01530857 Motion for Reconsideration	Plaintiff Edward L. Clark, Jr.'s Motion for Reconsideration (ROA 148) is DENIED. Plaintiff moves for reconsideration of "a prior order from Judge Michael Strickroth denying ex parte application for an order granting a Temporary Restraining Order (TRO) pending its decision to review Defendants response to